

24NNCV04317 24NNCV04317

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CA%2C09%2F18%2F2026

Source SHA-256: ac2d4f4d1b4c72fccf5b66d2b921e4f889a52bb24f331cc14b9423a032d470a0

Case Number: 24NNCV04317 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

MOTION FOR
SUMMARY JUDGMENT OR

ALTERNATIVELY
SUMMARY ADJUDICATION

Los

Angeles Superior Court Case # 24NNCV04317

MP: Defendant Lyft, Inc.

RP: Plaintiff Frank Bernal Vargas, Jr.

NOTICE:

The Court is not
requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling,
no argument is required. The tentative ruling will become

the ruling of the court if no argument is received.

ALLEGATIONS:

Frank Bernal

Vargas, Jr. ("Plaintiff") alleges that on March 14, 2023, he was injured in a motor vehicle collision with Defendants Arthur Gevorkyan ("Gevorkyan") and Lyft, Inc. ("Lyft").

The Complaint, filed September 16, 2024, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence.

MOTION ON CALENDAR:

On June 17, 2026, Lyft filed a Motion for Summary Judgment or, in the Alternative, Summary Adjudication. On August 27, 2026, Plaintiff filed an opposition. On September 4, 2026, Lyft filed a reply.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning

the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

EVIDENTIARY OBJECTIONS:

Plaintiff submitted objections to Colton Carr Declaration (Lyft's Safety Specialist) filed in support of Lyft's motion. The objections are overruled as to Objection Nos. 1-13 to paragraphs 1, 3, 12, 13, 15-16, 20, 21, 22, 23, 24, 25, 28, and 29.

ANALYSIS:

Lyft moves for summary judgment on Plaintiff's Complaint or, alternatively, seeks summary adjudication on the following issues:

.

Issue No. 1: As asserted by Lyft in its Answer, Lyft cannot be held vicariously liable for Gevorkyan's alleged negligence because Gevorkyan was an app-based, independent contractor at the time of the subject accident, not an employee or agent. Pursuant to Business & Professions Code § 7451, Lyft is not vicariously liable for the actions of independent contractors as a matter of law.

.

Issue No. 2: Lyft cannot be held directly liable for negligence as a matter of law because Lyft did not own or control the vehicle driven by Gevorkyan at the time of the subject accident.

A.

Lyft's Material Facts

Lyft provides the

following material facts in support of Issue No. 1. Lyft provides a digital platform (the “Lyft Platform”) that connects app-based drivers (“drivers”) using their personal vehicles with passengers seeking rides to certain destinations. The Lyft Platform operates over the internet to connect drivers and riders, arrange rideshare requests between those two groups, and transmit payments from riders to drivers. Lyft users in need of a ride can open the Lyft mobile application on their mobile devices (the “Lyft App”) to request rideshare services. The Lyft Platform attempts to match a driver with a rider. At their discretion, drivers may accept ride requests, pick up the riders, and transport them to their requested destinations. After riders complete the ride, the Lyft Platform transmits payment from the rider to the driver via the internet. (Lyft Fact 1.)

Gevorkyan applied to utilize the Lyft Platform as an app-based independent contractor driver on April 12, 2022. (Lyft Fact 2.) When Gevorkyan applied to use the Lyft App as an app-based independent contractor driver, he submitted proof of a valid California driver’s license, vehicle inspection, and automobile insurance. (Id. at 3.) After applying, Lyft procured an independent criminal background check and driving record check on Gevorkyan, which revealed no prior disqualifying felony criminal convictions or disqualifying driving incidents. (Id. at 4-5.)

Lyft approved Gevorkyan to drive on the Lyft App as an app-based independent contractor driver on April 13, 2022. (Id. at 7.)

Gevorkyan and Lyft entered into a written contract—the December 12, 2022 Terms of Service (“TOS”)—on January 16, 2023. (Id. at 6.) The December 12, 2022, TOS was the operative contract that governed the relationship between Gevorkyan and Lyft at the time of the subject accident. (Id. at

8.) Pursuant to the TOS’s terms, Gevorkyan and Lyft agreed that Gevorkyan was an app-based independent contractor driver, not an employee or agent; Lyft had no right to “direct or control” Gevorkyan; Gevorkyan “retained the sole right to determine when, where, and for how long [he] will utilize the Lyft platform”; and Gevorkyan had “complete discretion to provide Rideshare Services or otherwise engage in any other business or employment activities, including but not limited to providing services similar to the Rideshare Services to other companies, and that Lyft does not, and shall not be deemed to, restrict you from engaging in any such activity.” (Id. at 9.)

After Gevorkyan was

approved to use the Lyft App as an app-based independent contractor driver, and before the subject incident, Lyft provided Gevorkyan with required safety training as required under Prop. 22, including completion of: (1) Defensive Driving training on April 12, 2022, which included identification of collision-causing elements such as excessive speed, DUI, and distracted driving; (2) Responding to Sexual Misconduct training on April 12, 2022; and (3) Safe Food Delivery training. (Id. at 10.) After Gevorkyan was approved to use the Lyft App, Lyft initiated regular driving record and criminal background checks to ensure Gevorkyan continued to meet the requirements to use the Lyft App. Lyft also ensured that Gevorkyan's submitted documents, such as his driver's license, remained current. (Id. at 11.) During the time Gevorkyan used the Lyft Platform, Lyft did not prescribe specific hours during which he was required to be logged onto the Lyft Platform—Gevorkyan was equally free not to drive on the Lyft Platform at all. (Id. at 12.) When Gevorkyan logged onto the Lyft Platform, he had absolute discretion to accept, decline, or ignore any ride request he received, and Lyft did not require Gevorkyan to accept any specific rideshare or delivery service request as a condition to maintaining access to the Lyft Platform. (Id. at 13.) Gevorkyan was free to use any other digital network or other network company of his choice and was equally free to work in any other occupation or business of his choice too. (Id. at 14.) While using the Lyft Platform, Gevorkyan was able to concurrently perform rideshare services or delivery services through other transportation network companies, including Lyft's direct competitors. (Id. at 15.)

The subject incident occurred on March 14, 2023, at California Street and S. 3rd Ave, Arcadia, California. (Id. at 16.) At that time, Gevorkyan was using the Lyft Platform as an app-based independent contractor driver pursuant to Lyft's TOS. (Id. at 17.)

Plaintiff filed the Complaint against Gevorkyan and Lyft on September 16, 2024, alleging that Gevorkyan operated a motor vehicle in the course of his employment with Lyft, that he was an agent and employee of Lyft, and that he was acting within the scope of his agency with Lyft at the time of the Accident. (Id. at 18-19.) Lyft filed an Answer, asserting that Gevorkyan was an app-based independent contractor driver consistent with Prop. 22, and it denied any direct negligence as it pertains to the Accident. (Id. at 20.)

In support of

Issue No. 2, Lyft provides Facts 21-22.

Plaintiff also alleges that Lyft owned, drove, operated, controlled, entrusted and maintained the vehicle operated by Gevorkyan. (Lyft Fact 21.) At the time of the Accident, Lyft did not own, operate, control, or entrust the vehicle operated by Gevorkyan. (Id. at 22.)

B.

Lyft's

Vicarious Liability for Gevorkyan's Alleged Negligence (Issue 1)

Proposition 22,

the Protect App-Based Drivers and Services Act ("Prop. 22") was codified in Business & Professions Code, §§ 7448-7467.

(Castellanos v. State of California (2023) 89 Cal.App.5th 131, 142.)

Business &

Professions Code, § 7450 states that the purposes of the chapter are:

(a) To protect the basic legal right of Californians to choose to work as independent contractors with rideshare and delivery network companies throughout the state.

(b) To protect the individual right of every app-based rideshare and delivery driver to have the flexibility to set their own hours for when, where, and how they work.

(c) To require rideshare and delivery network companies to offer new protections and benefits for app-based rideshare and delivery drivers, including minimum compensation levels, insurance to cover on-the-job injuries, automobile accident insurance, health care subsidies for qualifying drivers, protection against harassment and discrimination, and mandatory contractual rights and appeal processes.

(d) To improve public safety by requiring criminal background checks, driver safety training, and other safety provisions to help ensure app-based rideshare and delivery drivers do not pose a threat to customers or the public.

(Bus. &
Prof. Code, § 7450.)

Section 7451

states:

Notwithstanding any other provision of law, including, but not limited to, the Labor Code, the Unemployment Insurance Code, and any orders, regulations, or opinions of the Department of Industrial Relations or any board, division, or commission within the Department of Industrial Relations, an app-based driver is an independent contractor and not an employee or agent with respect to the app-based driver's relationship with a network company if the following conditions are met:

(a) The network company does not unilaterally prescribe specific dates, times of day, or a minimum number of hours during which the app-based driver must be logged into the network company's online-enabled application or platform.

(b) The network company does not require the app-based driver to accept any specific rideshare service or delivery service request as a condition of maintaining access to the network company's online-enabled application or platform.

(c) The network company does not restrict the app-based driver from performing rideshare services or delivery services through other network companies except during engaged time.

(d) The network company does not restrict the app-based driver from working in any other lawful occupation or business.

(Bus. &
Prof. Code, § 7451.)

Section 7463

defines the following terms:

(a) "App-based driver" means an individual who is a DNC courier, TNC driver, or TCP driver or permit holder; and for whom the conditions set forth in subdivisions (a) to (d), inclusive, of Section 7451 are

satisfied.

...

(l) "Network company" means a business entity that is a DNC or a TNC.

....

(p) "Transportation network company" (TNC) has the same meaning as the definition contained in subdivision (c) of Section 5431 of the Public Utilities Code.

(Bus. & Prof. Code, § 7463.) Public Utilities Code, § 5431(c) defines TNC as "an organization, including, but not limited to, a corporation, limited liability company, partnership, sole proprietor, or any other entity, operating in California that provides prearranged transportation services for compensation using an online-enabled application or platform to connect passengers with drivers using a personal vehicle."

Lyft argues that Plaintiff's vicarious liability theory fails because Prop. 22 renders Gevorkyan an independent contractor. (City and County of San Francisco v. Uber Technologies, Inc. (2019) 36 Cal.App.5th 66, 71 [stating "(Lyft, another TNC)"].)

To show that it satisfies Business & Professions Code, § 7451's factors, Lyft relies on the TOS. The TOS which Gevorkyan agreed to shows that Gevorkyan agreed he was an independent contractor and not Lyft's employee or agent. Under the TOS Gevorkyan retained the sole right to decide when, where, and for how long he used the Lyft platform and to engage in other business/employment activities. (Lyft Fact 9; Mot., Ex. D [TOS at § 19].) Therefore, Lyft has shown it considered and treated Gevorkyan as an independent contractor pursuant to the terms of TOS section 7451(a)-(d).

In opposition, Plaintiff argues that Lyft has not addressed Public Utilities Code, § 5354,

which imposes liability on Lyft regardless of worker classification. He argues that Prop. 22 does not disturb section 5354 and that the Legislature confirmed the opposite in section 5353(f).

Public Utilities

Code, § 5354 states:

In construing and enforcing the provisions of this chapter relating to the prescribed privileges and obligations of the holder of a permit or certificate issued hereunder, the act, omission, or failure of any officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder, is the act, omission, or failure of the permit or certificate holder.

(Pub. Util.

Code, § 5354.) Section 5353(f) states: “This chapter does not apply to any of the following: ... (f) Passenger vehicles carrying passengers on a noncommercial enterprise basis.”

Plaintiff argues

that section 5354 is not limited to officers, agents, or employees, but to any “person offering to afford the authorized service with the approval or consent of the permit or certificate holder,” which includes persons like Gevorkyan who was carrying a passenger for compensation on a ride Lyft matched him to and recorded. (Opp. at p.13.) However, sections 5353 and 5354 are limited to “this chapter”—Public Utilities Code, Chapter 8, which governs the Passenger Charter-Party Carriers’ Act. (Pub. Util. Code, § 5351.)

Section 5352(a)

states: “The use of the public highways for the transportation of passengers for compensation is a business affected with a public interest. It is the purpose of this chapter to preserve for the public full benefit and use of public highways consistent with the needs of commerce without unnecessary congestion or wear and tear upon the highways; to secure to the people adequate and dependable transportation by carriers operating upon the highways; to secure full and unrestricted flow of traffic by motor carriers over the highways which will adequately meet reasonable public demands by providing for the regulation of all transportation agencies with respect to accident indemnity so that adequate and dependable service by all necessary

transportation agencies shall be maintained and the full use of the highways preserved to the public; and to promote carrier and public safety through its safety enforcement regulations.”

As plainly

stated, section 5354's applicability is limited to regulatory enforcement of permit-holder obligations under the Public Utilities Code, Chapter 8. Other than citing this section, Plaintiff has not shown through case law, legislative history, or by any other means whether the Legislature intended to impose vicarious liability on companies like Lyft through section 5354, or how this regulatory chapter extends to or imposes liability for common-law negligence claims.

Finally, even if applying section 5354, Plaintiff has not shown how Lyft violated the regulatory scheme, as his claims against Lyft are based on Gevorkyan's alleged negligent driving.

Thus, the Court finds that section 5354 has no application here.

Next, Plaintiff

contends that Lyft has not met the Business & Professions Code, § 7451 conditions.

First, Plaintiff

argues that under subsection (c), he is not contending that Lyft forbade outside work, but that Lyft contends in its separate statement that while using the Lyft Platform, Gevorkyan was able to “concurrently” perform rideshare/delivery services through other TNCs.

(Lyft Fact 15.) Plaintiff contends

that Gevorkyan testified that it was impossible to work for Uber and Lyft at the same time, as one either does rides through Uber or for Lyft. (Gevorkyan Depo. at pp.40-41.) Thus, Plaintiff argues that sequential switching between the apps is not “concurrent” such that there is a triable issue of material fact.

More fully,

Gevorkian testified:

Q.

Did you ever work for Uber and Lyft at the same time?

A. It's impossible to work for Uber and Lyft at the same time. You either do rides through Uber or for Lyft.

Q. And I'm not speaking at the very same moment, but were there days or weeks or months where you would switch between driving through Lyft and driving for Uber.

A. Yes, that happened, that I switched.

Q. And for approximately how long did you provide services for both Uber and Lyft and switch between the two?

A. I worked like this for about approximately two and a half years.

(Gevorkian Depo.
at pp.40-41.)

Section 7451(c)

does not require that an app-based driver perform "concurrent" rideshare service, but only that Lyft not restrict app-based drivers from performing rideshare services through other network companies. Plaintiff construes Lyft's Fact 15 too narrowly. As the Court reads Lyft's Fact 15, as supported by Gevorkian's deposition testimony, Gevorkyan was able to use both Uber and Lyft's platforms. As pointed out by Lyft in reply, subsection (c) does not require simultaneous platform operation, as it carves out an exception "during engaged time." The Court does not find that Plaintiff has raised a triable issue of material fact regarding subsection (c)'s condition.

Second,

Plaintiff argues that there are triable issues of material fact regarding Lyft's Fact 12 and section 7451(a). Plaintiff cites to Gevorkyan's deposition:

Q. ... [D]id Lyft require you to work any minimum number of hours, either daily, weekly or monthly?

A. No. There's no such requirement, but that's something that you're rating. Depends on the more you work and the better reviews you get from your riders, the higher your rating. But as to how many specific hours you're supposed to work, there is no such requirement.

(Gevorkian Depo.
at pp.39-40.)

While Plaintiff

does not dispute that Lyft imposes no minimum-hours requirement, he argues that Lyft scores its drivers by hours worked and that this is a factual question. However, Plaintiff has not raised a triable issue of material fact on whether Lyft imposed hours or set times for work; rather, he concedes this point.

While Plaintiff contends there is a rating system, Plaintiff has not shown how this amounts to Lyft prescribing specific dates, times of day, or a minimum number of hours during which Gevorkian must have been logged into Lyft's app.

Third, Plaintiff

argues that there are triable issues of material fact as to section 7451(b) and Lyft's Fact 13, regarding whether Gevorkian had discretion to accept, decline, or ignore ride requests. Gevorkian testified:

Q. Again, talking around the time of the accident, did Lyft have a requirement that you were required to accept specific rides when they came up on that app?

A. Accepting or not accepting a ride, it depends on a driver. And Lyft does not require that I accept a ride against my will.

Q. You have the ability to decline or ignore a ride request; is that correct?

A. Right. I don't have to accept a ride that I don't like for one reason or another.

(Gevorkian Depo.

at p.40.) Gevorkian further testified

that there were no rules to canceling rides, as a driver could cancel a ride for any reason, but that one's ranking—given by Lyft as opposed to passenger reviews—could decrease. (Id. at p.37.)

Plaintiff argues Gevorkian was not asked about

deactivation rates, suspension, or consequences of declining rides. He argues that Lyft failed to address consequences of declining rides, such that it has not established that acceptance was never a condition of access.

(Opp. at p.19.) However,

Gevorkian's testimony confirms that he could decline rides for any reason. While this may decrease his score while using the app, Plaintiff has not shown that this prevented Gevorkian or other Lyft drivers from accessing the app.

Fourth, Plaintiff argues that Lyft has not established

that Gevorkian was an approved app-based driver on March 14, 2023, the day of the subject incident. Plaintiff cites to

Lyft's memorandum of points and authorities at page 13, lines 12-13, wherein Lyft states it approved Gevorkian to drive on the Lyft app as an independent contractor on June 16, 2023, citing to Fact 7.

This appears to be a typographical error in the memorandum of points and authorities, as Lyft's Fact 7 actually refers to April 13, 2022, which is supported by Colton Carr's declaration at paragraph 18. A typographical error in the memorandum of points and authorities is not a triable issue of material fact.

Thus, the Court

does not find that Plaintiff has raised a triable issue of material fact regarding the section 7451 factors.

(Plaintiff did not specifically address subsection (d).)

Finally,

Plaintiff argues that Lyft's Fact 17 relies solely on the Complaint's allegations, which is improper to support the fact that Gevorkian was using the Lyft platform as an independent contractor pursuant to Lyft's TOS. However, even if this fact were disregarded, Lyft's Facts 6 (Gevorkian and Lyft entered into the December 12, 2022 version of the TOS on January 16, 2023), 7 (Lyft approved Gevorkian to drive on the Lyft app as an independent contractor), and 8 (the December 12, 2022 TOS was the operative contract governing Gevorkian and Lyft's relationship at the time of the subject incident) taken together already reiterate in parts what Fact 17 states, as well as cite to Mr. Carr's declaration and the December 12, 2022 TOS terms. This will not be a basis to deny the motion.

Based on the

above, the Court finds that Plaintiff has not raised a triable issue of

material fact as to Issue No. 1 – regarding Gevorkyan's status as an independent contractor and whether Lyft is vicariously liable for Gevorkyan's alleged negligence. As such, the motion is granted as to Issue No. 1.

C.

Lyft's

Direct Liability for Negligence (Issue 2)

Lyft argues that it cannot be directly liable for negligence because it did not (1) operate/drive/control, (2) own/maintain the vehicle, or (3) entrust the vehicle to Gevorkyan, at the time of the subject incident.

First, it argues that

it did not drive the vehicle. Vehicle

Code, § 305 defines "driver" as "a person who drives or is in actual physical control of a vehicle." Gevorkyan

testified he drove a 2022 Toyota Sienna.

(Gevorkian Depo. at p.12.) Colton

Carr, Lyft's Safety Specialist, states that: "Based upon information and belief, I understand that Gevorkyan was driving a 2022 Toyota Sienna at the time of the Accident. Lyft does not, in the ordinary course, own, possess, or operate the vehicles that app-based drivers utilize while providing transportation services via the Lyft Platform. Lyft has no record of owning, maintaining, or repairing the 2022 Toyota Sienna that Gevorkyan was driving at the time of the accident." (Carr Decl., ¶29.)

In opposition,

Plaintiff argues that the Court cannot rely on Mr. Carr's statements made upon information and belief. However, Mr.

Carr only stated upon information and belief that Gevorkyan drove a 2022 Toyota Sienna. Mr. Carr then states (not upon information and belief) that Lyft does not own, possess, or operate the vehicles that its app-based drivers utilize.

The logical conclusion from these statements is that because Lyft did not own any vehicles driven by its app-based drivers, Lyft did not own the vehicle driven by Gevorkyan at the time of the subject incident. Plaintiff has not raised a triable issue of material fact on whether Lyft owned the vehicle driven by Gevorkyan.

Second, Lyft argues

it did not negligently entrust the vehicle to Gevorkyan because it did not own the vehicle in the first place. (Veh.

Code, § 17150 ["Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner."] [emphasis added].) For the same reasons discussed above, Lyft has established its burden on negligent entrustment theories and Plaintiff has not raised a triable issue of material fact on this claim.

Third, Lyft argues

that any other theories of direct negligence are unavailing as it did not maintain the vehicle or control Gevorkian.

(As discussed above, Gevorkyan had the freedom to choose when to accept rides, etc.)

In opposition,

Plaintiff argues that Lyft undertook screening of Gevorkyan, required him to take training classes, and ran driving record and criminal background checks to ensure he met necessary regularly requirements.

Plaintiff contends Prop. 22 does not abolish Lyft's direct negligence in "performing undertakings it elected... to perform." (Opp. at p.24.) Plaintiff argues: "Plaintiff's general-negligence cause of action alleges that Defendants 'negligently operated, owned, controlled, maintained, and entrusted their vehicle in such a way that it collided with Plaintiff'; Lyft's own screening, training, and monitoring of the driver it authorized to carry the public fall within that allegation. If the Court concludes otherwise, Plaintiff requests leave to amend rather than judgment." (Id.)

However, Plaintiff

did not assert a claim for negligent hiring, supervising, or retaining Gevorkyan against Lyft in the Complaint.

"A party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings." (California Bank &

Trust v. Lawlor (2013) 222 Cal.App.4th 625, 637, fn.3; Schmidt v.

Citibank, N.A. (2018) 28 Cal.App.5th 1109, 1125 ["Again, we may not consider a new theory raised by a plaintiff in opposition to summary judgment, or on appeal from the granting of

summary judgment, where that theory is not supported by the pleadings.”.) This is not a situation where Plaintiff’s Complaint allegations were deficient such that the Court would be inclined to consider transmuting this motion for summary judgment/adjudication into a motion for judgment on the pleadings. Rather, Plaintiff seeks leave to amend the complaint to assert a new theory of liability against Lyft. Such a request is improper at this time. Plaintiff has not filed a motion for leave to amend the complaint to add a new cause of action, nor has he sought a continuance based on C.C.P. § 437c(h). The request for leave to amend the complaint by way of his opposition request is denied.

Additionally, even if briefly considered, Plaintiff has not raised triable issues of material fact that any such screening/training of Gevorkyan was improperly or negligently conducted, that Gevorkyan had a criminal, DUI, or any other records relevant to his driving history, etc. He has not raised triable issues of material fact showing that Lyft’s regulatory screenings of Gevorkyan or vehicle inspection were negligent in any manner.

As such, Plaintiff has not raised a triable issue of material fact against Lyft regarding direct liability. As such, the motion is granted as to Issue No. 2.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Defendant Lyft Inc.’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication came on regularly for hearing on September 18, 2026, with

appearances/submissions as noted in the minute order for said hearings, and the court, being fully advised in the premises, did then and there rule as follows:

Defendant lyft, inc.'s motion FOR SUMMARY JUDGMENT IS GRANTED.

DEFENDANT LYFT, INC. TO PROVIDE NOTICE.

IT IS SO ORDERED.